CONSTABLE MAYAKAYAKA PORTIA 986658D

Versus

SUPERINTENDENT F. MAZODZE N.O.

And

COMMISSIONER GENERAL OF POLICE

HIGH COURT OF ZIMBABWE
ZISENGWE J
MASVINGO, 27 & 29 July 2026

Opposed application: review

N. Mugiya; for the applicant
E. Shoko; for both respondents

ZISENGWE J: The matter before me reminds me of the biblical tale of Jonah who somehow got swallowed by a whale while attempting to flee from divine command to preach in the wicked city of Nineveh. He ended up spending a three days in the innards of that fish before being ejected on the shores of Nineveh. It must have been a tall order for him to convince all and sundry, much less his wife and employer of his whereabouts during that period. The applicant in the present matter, a female police officer, was absent from duty for a continuous period of 19 days, i.e. from 24 March 2025 to 11 April 2025. Her explanation is that she inexplicably lost consciousness on 24 March 2025 and regained consciousness on 11 April 2025, only to discover that she was under the care of a traditional healer, i.e. n'anga. She claims to have no recollection whatsoever of what happened during that period on account of her unconsciousness. One may therefore be excused for drawing parallels with Jonah's story.

For being absent from duty without official leave she was hurled before the first respondent under those disciplinary proceedings. In this respect she charged by her employer for contravening paragraph 13 (1) of the schedule to the Police Act, [Chapter 11:10].

Several witnesses testified after which the trial officer did not buy her story of having been unconscious during the period in question and having been under the care of a traditional

healer and therefore convicted her before sentencing her to 12 days' detention at ZRP fairbridge barracks.

Her appeal to the Commissioner General of police, the second respondent, was unsuccessful.

Dissatisfied with both outcomes she mounted the present application seeking a review of the proceedings on the basis of gross irregularity. Although she did not say so on terms it is apparent that she alleges gross irregularity in the *decision* as contemplated in Section 27 (1) (c) of the High Court Act, [*Chapter 7:06*]. Her grounds for review are couched in the following terms:

> "The first and second respondents committed gross irregularities in that:
>
> 1) The first respondent convicted the applicant and the second respondent upheld that conviction where the first respondent had failed to show in his judgment how I was guilty of the offence, how the essential elements were proved by the State and how my defence to the charge was rebutted by the State.
> 2) The first respondents sentence which the second respondent confirmed was purely and completely guesswork. It is not supported by the record of proceedings.
> 3) The first respondent convicted the applicant on the basis of here defence case and not on the strength of the State case. (This ground was abandoned during the oral hearing of application in court. "

The application stands opposed by the respondents who both stand by their decisions. The deny any irregularity, let alone *gross* in their respective decisions. Needless to say they pray for a dismissal of the application with costs.

Apart from opposing the application on the merits they also raise two preliminary objections to the application. The first relates to the alleged effluxion of the eight weeks within which a review appeal needs to be noted as required by rule 62 of the High Court rules 2021. It is averred in the respondent's heads of argument that the proceedings of the first respondent having been concluded on 9 October 2025 and that of the second respondent on 31 December 2025, the present application, therefore only having been filed on 19 March 2026, was woefully out of time. Accordingly, so the argument goes, there being no application for condonation having been made or granted, the application ought to be dismissed.

The second point *in limine* impugns the validity of the review application. According to the respondent it is incompetent to seek the review of two decisions in one application. Reliance was placed on the decision in *Khauyeza v Trial officer and Others* SC-23-19.

The applicant resisted both points in *limine*. In response to the first point *in limine*, it was submitted on behalf of the applicant that the review application was filed on time and that the respondents are erroneous in their computation of the eight-week period contemplated by r 62 of the Rules. As far as the second point in *limine* is concerned, it is the applicant's contention that there is nothing irregular about seeking a review of the two proceedings and that the respondents' objection in this regard is based on a misapprehension of the decision in *Khauyeza, supra*.

Whether or not the review application was filed on time

The following chronology of facts is common cause. The applicant was convicted and sentenced as aforesaid in the proceedings presided over by the first respondent on 9 October 2025. She then initially sought a review of those proceedings by this court under HCMSC 560/25. However, when the matter was set down for hearing on 16 March 2026, the applicant withdrew that application. The explanation that has since proffered for the withdrawal is that the applicant realised that the application had been brought prematurely as she had not exhausted internal remedies, given that her appeal to the second respondent had not yet been determined.

I interpose here briefly to observe that the determination by the second respondent, dismissing the appeal had since been rendered on 31 December 2025.

Be that as it may, it is common cause that this present application was filed with the registrar on 13 March 2026. The simple question is whether the combined application was filed within the eight weeks stipulated in rule 62 of the High Court rules, 2021.

That the application as it relates to the first respondent was filed outside the eight-week period is hardly in question.

Rule 62 (4) provides that:

> *"Any proceedings by way of review shall be instituted within 8 weeks of the termination of the suit, action or proceedings in which the irregularity complained of is alleged to have occurred".*

The parties in the present matter sparred on when the eight-week period should be reckoned to have started running. This issue is now settled; that period is reckoned to start running from the date that the applicant was informed of the decision that she seeks to impugn.

In *Gula-Ndebele* v *Bhunu* NO 2010 (1) ZLR 78 (H) at 82B, MAKARAU J (as she then was) had this to say:

> "It is trite that unless the time is extended by the court for good cause shown, an application for review must be filed within eight weeks of the decision being impugned. The calculation of time for the purposes of the rules is governed by common law. The rule is to include the last day when the event occurred and to exclude the last day. Thus the eight- week period is to be reckoned from the date when the applicant was notified of the fact that the proceedings against him had terminated. See *Nair* v *Naicker* 1942 NPD 3 at 6ff".

See also the case of *Vrystaat Estates (Pvt) Ltd* v *President Administrative Court & Ors* 1991 (1) ZLR 323 where the position was stated in the following terms:

> "No authority is necessary for the proposition that the eight weeks cannot possibly apply to an applicant who does not even know of the decision for far longer than eight weeks after it was made, precisely because he was not informed of the proceedings as he should have been. Indeed, it seems to me to be artificial to seek to apply the eight weeks rule as from the date the appellant became aware of the proceedings. The Cluff Minerals case (1989 (3) ZLR 338 (SC)) and the Clan Transport case (1956 R&N 322 at 325-6) were concerned with the date when the proceedings were terminated. They decided this was the date when official notice of the decision was communicated to the party concerned."

On the authority of the above, one is inclined to accept the position adopted by Mr Mugiya, counsel for the applicant, that the eight-week period ought to be calculated from 9 January 2025 as averred in paragraph 17 of the applicant's founding affidavit. This paragraph clearly conveys the distinct impression that she became aware of the second respondent's determination on that date.

However, a computation of the period between applicant's knowledge of the second respondent's determination and the filing of the present application shows that the applicant was out of time. The word "week" is given in ordinary grammatical meaning, namely a continuous period of seven days. In terms of s 33(2) of the Interpretation Act, [*Chapter 1:01]*, where in an enactment a period of time is expressed to begin on, or reckoned from a particular day, that day shall not be included in that period.

Accordingly, therefore, the eight-week period in the present matter would then be reckoned as having commenced to run on 12 January 2026 and expire on 10 March 2026. This application was only filed on 13 March 2026 and therefore out of time.

In *Ex Constable Vengayi Chikurungeni* v *Commissioner General of Police & Anor* HH-686-22 TAGU J cited the case of the case of *Mutare City Council* v *Mudzime & Ors* 1999 (2) ZLR 140 where MUCHECHETERE JA highlighted that as the application for review had not been lodged within the eight weeks and there was no application for condonation before the court then in such circumstances - "the court has no discretion. It will simply dismiss the application". The court in the *Mudzime* case, supra, relied on the case of *Forest Commission* v *Moyo* 1997 (1) ZLR 254 (S) at 260 C-E where the Supreme Court stated the following:

> "I entertain no doubt that absent an application it was erroneous for the learned judge to condone what was on the face of it, a grave none-compliance with R259 for it is the making of the application that triggers the discretion to extend the time."
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> In *Matsambire* v *Gweru City Council* S-183-95 (not reported) this court held that where proceedings by way of review were not instituted within the specified eight weeks' period a condonation of the breach of R 259 was not sought the matter was not properly before the court. I can conceive of no reason to depart from that ruling..."

Disposition:

The application for review having been filed outside the eight-week period prescribed in rule 62(4) of the High Court rules, 2021 and no application for condonation having been made or granted, the application stands is not properly before the court. In the heads of argument the respondents fell short of seeking a dismissal of the application on that basis.

That being the case, no need arises therefore for me to deal with the second point in *limine.*

Costs

The general rule is that the substantially successful party is entitled to his or her costs. There is no justification for depriving the respondents of their costs. Accordingly, the following order is hereby made.

Order

It is hereby ordered that.

The point *in limine* raised by the respondents that the review application was filed out of time is hereby upheld and the application for review be and is hereby struck off the roll with costs.

Mugiya Law Chambers; Applicants Legal Practitioners

Civil Division of the Attorney-General's Office, Respondent's Legal Practitioners.